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IN THE SUPREME COURT OF FLORIDA

BARRY ROBERT GAINSBURG,

Petitioner,

vs.

THE FLORIDA BAR,

Respondent.
_____/

Supreme Court Case No.

PETITION FOR REVIEW OF DENIAL OF PETITION FOR PERMANENT RETIREMENT

PETITIONER, BARRY ROBERT GAINSBURG, pursuant to R. Regulating Fla. Bar 1-3.5, respectfully petitions this Court to review a denial of his Petition for Permanent Retirement from The Florida Bar as grounds therefore states:

Factual Predicate

1. On March 22, 2023, Petitioner, Barry Robert Gainsburg, electronically submitted a document styled, Petition for Permanent Retirement, to The Florida Bar.

2. On March 28, 2023, The Florida Bar, through a membership records assistant, sent an e-mail advising the Petitioner that in order to permanently retire he needed to use the correct

retirement petition and designate that he was seeking a permanent retirement on the form that she provided to the Petitioner.

3. Later that same day, Petitioner submitted a new Petition for Permanent Retirement via electronic mail.

4. The Bar acknowledged receipt of the Petition and noted that same would be processed in due course.

5. However, the next day the Bar, through a membership records assistant, advised as follows:

> While beginning to process your permanent retirement request, we were notified by our Lawyer Regulation Department that we may not move forward with processing it.
>
> If you have questions regarding this, please contact that department at 850-561-5839.

6. Counsel for the Petitioner engaged in communication with Linda Gonzalez, Esq., of The Florida Bar's Fort Lauderdale Office as directed by the membership records assistant.

7. The first e-mail exchange of note was on March 29, 2023, wherein Mr. Teschner, counsel for Petitioner, inquired about any action taken by the Executive Director of The Florida Bar regarding R. Regulating Fla. Bar 1-3.5 and the response from Bar Counsel was

a terse two sentence response advising that the Bar would not be accepting the petition for permanent retirement.

8. Mr. Teschner followed up on March 30, 2023, by way of an e-mail which contained a request for confirmation of action by the Executive Director on the petition. No response was promptly provided to this email.

9. Additional correspondence was sent by undersigned counsel via email to Ms. Gonzalez on March 31, 2023, with another inquiry about any action taken by the Executive Director, vis-à-vis the aforementioned petition.

10. On April 5, 2023, Mr. Teschner forwarded a letter to the Bar's Executive Director, again requesting advisement on his actions taken on the aforementioned petition.

11. Lastly, on April 6, 2023, Bar counsel forwarded an e-mail that stated in relevant part as follows:

> In response to your emails pertaining to the Petition for Permanent Retirement, Rule 1-3.5 states, "Any member of The Florida Bar may retire from The Florida Bar upon petition or other written request to, and approval of, the executive director." This is to inform you that Joshua Doyle does not approve Mr.

> Gainsburg's petition for permanent retirement. Additionally, all further communication should be directed only to the undersigned bar counsel.

12. Having then been advised of the Executive Director's denial of the Petition for Permanent Retirement the Original Petition to Review ("Original Petition") such denial was submitted to the court for review and was accepted for such.
13. On July 14, 2023, the Florida Supreme Court issued an order denying Mr. Gainsburg's Original Petition with no written well thought out logical decision provided.
14. On that same day, July 14, 2023, Petitioner elected "Inactive Status" as a member of Defendant The Florida Bar ("TFB").
15. Subsequently in July and August, 2023 Petitioner filed additional renewed Petitions for Permanent Retirement with the Defendant TFB ("Subsequent Petitions)".
16. Those Subsequent Petitions, just like all of the previously submitted ones, were denied through Defendant TFB

through its ED, Joshua Doyle with no explanation provided.

17. On September 11, 2023, Mr. Gainsburg once again filed a Petition for Permanent Retirement from Defendant, TFB. ("9/11 Petition")

18. On September 15, 2023, Mr. Gainsburg re-served Defendant the 9/11 Petition (See Exhibit "A"), along with a Notice of Intent to File a Federal Lawsuit against Defendants The Florida Bar Florida Supreme Court, Joshua Doyle and Linna Gonzales (See Exhibit "B"), along with an ESI Demand letter (See Exhibit "C") and two letters of support, the first from The Leonard P. Howell Foundation (See Exhibit "D"), and the second from His & Her Majesty Repatriation Foundation (See Exhibit "E"), both non-profit Rastafari Organizations.

19. On September 19, 2023, Petitioner was informed that the NY Grievance Committee for the 10th District was exercising its original jurisdiction over discipling him, rather than rely on reciprocal potential discipline imposed

by Defendant TFB and the Florida Supreme Court.

20. Previously, in the Defendant TFB's Reply to Petitioner's Original Petition for Retirement it was asserted that its intent was to discipline Petitioner so that discipline could be similarly imposed by NY on Petitioner. That argument now clearly falls down like the Tower of Babel, eventually did.

21. Previously Defendant TFB's Reply to Petitioner for his Original Petition to Permanent Retire from The Florida Bar, there was implied concern that Petitioner would still be practicing law, even NY law, in the Free State of Floriduh.

22. Petitioner is now separated from his wife and moving to Hanover Parish Jamaica to live with his godson in a tiny bamboo cottage on a permanent basis. Defendant's TFB other argument also is unsupportable as it the argument falls down like a Babylon tower on fire, again.

23. On October 3, 2023, Defendant TFB's membership record department informed the Petitioner that his 9/11 Petition has been denied. See Exhibit A attached hereto.

24. Having on the sixth (6th) occasion of being advised of the ED Doyle's denial of the 9/11 Petition for Permanent Retirement, this New Petition to Review the denial of Petitioner's 9/11 Petition now follows.

Argument

25. This dispute is governed by R. Regulating Fla. Bar which reads in *toto*:

> Any member of The Florida Bar may retire from The Florida Bar upon petition or other written request to, and approval of, the executive director. A retired member shall not practice law in this state except upon petition for reinstatement to, and approval of, the executive director; the payment of all membership fees, costs, or other amounts owed to The Florida Bar; and the completion of all outstanding continuing legal education or basic skills course requirements. A member who seeks and is approved to permanently retire shall not be eligible for reinstatement or readmission. A retired member shall be entitled to receive such other privileges as the board of governors may authorize.
>
> A retired member shall remain subject to disciplinary action for acts committed before the effective date of retirement. Acts committed after retirement may be considered in evaluating the member's fitness to resume the

> practice of law in Florida as elsewhere stated in these Rules Regulating The Florida Bar.
>
> If the executive director is in doubt as to disposition of a petition, the executive director may refer the petition to the board of governors for its action. Action of the executive director or board of governors denying a petition for retirement or reinstatement from retirement may be reviewed upon petition to the Supreme Court of Florida.

26. As is noted above, Petitioner submitted a 9/11 Petition for Permanent Retirement on an approved Florida Bar form and the ED, through membership records department, eventually confirmed that said 9/11 P, even in his "Inactive status" acquired on July 14, 2023.

27. It is respectfully submitted that the Petitioner meets all of the requirements to be allowed to permanently retire as a non-practicing Florida lawer.

28. The October 5, 2023 ED denial came without explanation[1]

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1 While there are US Constitutional and Federal questions of law involving, but not limited to, due process, equal protection, First Amendment concerns about Freedom of Speech and Freedom of Association, Religious Freedom, Americans with Disabilities Act and Sherman Anti-Trust concerns, this court should not consider them in this suit since those claims are in from of the Federal Southern District Court, Florida and since this court lacks jurisdiction of such matters, it not need not address or attempt to resolve such through

and therefore, the Petitioner can only surmise the grounds for such denial is a grievance pending in the Fort Lauderdale Office of The Florida Bar, the grounds2 of which are immaterial to this instant petition for review in that the Rule clearly states that: "A retired member shall remain subject to disciplinary action for acts committed before the effective date of retirement." *Id.*

29. In essence, the Bar has declined to accept a Permanent Retirement solely because of a pending grievance that has not advanced past a grievance committee yet, notwithstanding that the Bar is not precluded in any manner from prosecuting the Petitioner for any of the actions that are contained in such grievance.

30. It is important to note that in *The Florida Bar v. Bosse*, 2021 Fla. Lexis 1341, 2021 WL 3560627 (Fla. 2021), this Court approved a Report of Referee, which dismissed the underlying grievance as the lawyer had submitted a permanent retirement that

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the filing by Petitioner of this Petition to Review the 9/11 Petition.

2 The grievance concerns personal conduct unrelated to the representation of any client. The Petitioner is currently a member in good standing, has no pending matters with a Florida client, owes no refund or restitution to anyone, inclusive of Florida clients.

had already been approved by the Bar.

31. There are other known instances wherein a lawyer who had pending disciplinary matters was allowed to permanently retire with no further action taken by the Bar.

32. However, in this instance, Petition simply asks to be permitted to permanently retire from The Florida Bar and has not asked for a *quid pro quo* from the Bar relative to his pending case before a grievance committee. There is no reasonable basis to deny such a request.

WHEREFORE, the Petitioner, BARRY ROBERT GAINSBURG, respectfully requests this Court to accept his 9/11 Petition for Permanent Retirement and grant such other relief that the Court deems reasonable and proper.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing was furnished via electronic mail only to Linda Gonzalez, Bar Counsel, The Florida Bar, 1300 Concord Terrace, Suite 130, Sunrise, FL 33323 (lgonzalez@flabar.org; rcorzo@floridabar.org), and to Patricia Ann Toro Savitz, Staff Counsel, The Florida Bar, 651 East Jefferson

Street, Tallahassee, FL 32399-2300 (psavitz@floridabar.org) on this 6th day of October 2023

Respectfully submitted,

Barry R. Gainsburg, Esq.
Pro Se, Petitioner
Chambers Pen – White Lion District
P.O. Hanover Parrish
Lucea, Jamaica, WI

954-707-0527 (exwife's #)
Lindagonzalezissatin71@gmail.com

By: _____
Barry R. Gainsburg, Esq.
Florida Bar No: Pro Se